

24SMCV01071 24SMCV01071

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Case Number: 24SMCV01071 Hearing Date: June 26, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles – West District

Beverly Hills Courthouse / Department 205

DAVID GOMEZ, an
individual,

Plaintiff,

v.

NEXT HEALTH INC.; NEXT HEALTH CENTURY
CITY; NEXT HEALTH FRANCHISING LLC; NEXT HEALTH INTERNATIONAL LLC; NEXT HEALTH
NEWPORT BEACH INC.; and DOES 1 TO 10,

Defendants.

Case No.: 24SMCV01071

Hearing Date: June 26, 2026

[TENTATIVE]

order RE:

Defendant NEXT HEALTH INC's

motion for a
protective order

BACKGROUND

This

is a negligence and strict products liability case regarding the sale and administration of an “Infrared LED Light Bed Therapy” which resulted in a third-degree burn to Plaintiff David Gomez (Plaintiff) according to the First Amended Complaint. (FAC ¶ 1.) Plaintiff’s sister, Laura Gonzalez, purchased a session at Next Health (Defendant) as a gift for the Plaintiff prior to December 10, 2023. (FAC ¶ 10.) On December 10, 2023, Plaintiff, along with their sister and brother, visited Defendant’s facility to undergo “Infrared LED Light Bed Therapy” and other therapies. (FAC ¶ 11.) The “Infrared LED Light Bed Therapy” required Plaintiff to lie inside a fully encapsulating machine (Subject Light Bed) for approximately 45 minutes. This machine is lined with thousands of infrared lights and/or LED bulbs. Defendant advertises this therapy as optimizing mitochondrial function with 13,000 LED bulbs designed for near and far infrared exposure to support cellular repair and recovery. (FAC ¶ 12.)

Plaintiff

alleges that the “Infrared LED Light Bed Therapy” and the Subject Light Bed are the same, with the therapy being entirely derived from the bed itself, which is considered a product. (FAC ¶ 13.) Defendants did not examine Plaintiff’s body or assess Plaintiff’s suitability for the Infrared LED Light Bed Therapy prior to the session. (FAC ¶ 14.) Before the therapy, Plaintiff informed Defendant about having abdominal scars from a previous surgery and inquired if the therapy would affect those scars. Defendant assured the Plaintiff that the scars would remain unaffected. (FAC ¶ 15.) While undergoing the therapy, Plaintiff suffered severe burns across his abdomen from the Subject Light Bed. Medical evaluations later confirmed these burns as third-degree burns. (FAC ¶ 16.) The therapy also caused Plaintiff’s previously healed surgical scars to fully reopen. (FAC ¶ 17.) Plaintiff’s injuries are permanent, including an open wound and third-degree burns on his abdomen. (FAC ¶ 18.)

On

March 7, 2024, Plaintiff filed his complaint against Defendant, asserting four causes of action for (1) negligence, (2) strict products liability, (3)

negligent products liability, and (4) breach of express and implied warranties.

On

May 14, 2024, Plaintiff filed his first amended complaint (FAC) asserting only two causes of action for (1) negligence and (2) strict products liability.

On

July 16, 2024, the Court sustained Defendant's demurrer in part without leave to amend as to the second cause of action for strict products liability. As such, the only remaining cause of action against Defendant is a cause of action for negligence.

On

April 15, 2026, Defendant filed its motion for a protective order, which was denied without prejudice on May 8, 2026 because informal meet and confer efforts failed and no informal discovery conference (IDC) was scheduled for the issues raised.

On

May 20, 2026, Defendant filed the present motion for a protective order.

On

May 28, 2026, an IDC was held for the issues raised in the present motion and both parties were found to have satisfied their IDC obligations to bring the present discovery motion.

On

June 5, 2026, Plaintiff filed his motion to compel the depositions of Kevin Peake and Dr. Darshan Shah, which is presently set for hearing on July 9, 2026.

On

June 15, 2026, Plaintiff filed his opposition to Defendant's motion.

On

June 18, 2026, Defendant filed its reply.

This

hearing is on Defendant's motion for a protective order regarding Plaintiff's taking the depositions of Kevin Peake (Peake), the President and Co-Founder of Defendant, and Dr. Darshan Shaw (Shaw), the founder and CEO of Defendant.

Defendant argues (1) Plaintiff has not provided any compelling reason as to why Peake and Shah should be deposed, (2) Plaintiff has not shown good cause that Peake or Shah have unique or superior personal knowledge pertaining to the subject incident, and (3) the information sought from Peake and Shah through deposition is better sought through written discovery.

MEET AND CONFER

A motion for protective order must be accompanied by a meet and confer declaration under meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2017.020, subd. (a).) Here, the parties attended an IDC on May 28, 2026 after informal meet and confer attempts were unsuccessful. This satisfies Defendant's meet and confer requirements. (See Minute Order dated May 28, 2026.)

LEGAL STANDARD

"The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person." (Code Civ. Proc., § 2017.020, subd. (a).) "The issuance and formulation of protective orders are to a large extent discretionary." (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 316.) "[T]he burden is on the party seeking the protective order to show good cause for whatever order is sought." (*Id.* at 318.)

PRELIMINARY PROCEDURAL ISSUES

All opposition papers must be filed at least nine court days in advance of the hearing date. (Code Civ. Proc. § 1005, subd. (b).) The hearing on this matter is set for June 26, 2026. Due to the court holiday on Friday, June 19, 2026, Plaintiff's opposition was due on or before Friday, June 12, 2026. Plaintiff filed his opposition to Defendant's motion for a protective order on June 15, 2026. As such, Plaintiff's opposition was untimely by one court day.

However, given Defendant's timely reply, and in the interests of justice, the Court exercises

its discretion and considers Plaintiff's opposition on the merits.

DISCUSSION

Defendant seeks a protective order regarding Plaintiff's taking the depositions of Peake and Shah, on the grounds that they are high level executives with no personal or superior knowledge of the case, are considered apex witnesses, and cannot be compelled to deposition absent a showing of good cause, which Plaintiff has failed to establish. (Motion, p. 8:10-16.) In opposition, Plaintiff argues that he has exhausted less intrusive discovery methods, both Peake and Shah have unique or superior knowledge of the issues at hand as evidenced by Peake's verification of discovery responses and witness testimony pointing Plaintiff to Shah and Peake as individuals with knowledge of the case, and Defendant is not a corporation which is protected by the apex doctrine given the size and personal involvement of its officers. (Opp., p. 4:2-4, 6:7-10; 7:3-4; 8:22-26.)

Generally, California encourages broad and liberal civil discovery in litigation, permitting discovery of any matter not privileged that is relevant to the subject matter of the action. (Code Civ. Proc., § 2017.010.) Any party may obtain discovery by taking the oral deposition of any person. (Id., § 2025.010.) When the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested, and the deponent shall designate and produce at the deposition its officers, directors, managing agents, employees, or agents most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent. (Id., § 2025.230.) Generally, the service of a deposition notice is effective to require any deponent who is an officer, director, managing agent, or employee of a party to attend and testify. (Id., § 2025.280, subd. (a).)

However, notwithstanding this general preference for broad discovery, before a deposition, any party, deponent, or affected organization may move for a protective order. (Id., § 2025.420, subd. (a).) The court may make an order to protect any party, deponent, or organization from unwarranted annoyance, embarrassment, oppression, undue burden, or expense if good cause is shown by the moving party. (Id., § 2025.420, subd. (b).) When a party seeks a protective order related to the deposition of an apex witness, courts have held that "it amounts to an abuse of discretion to withhold a protective order when a plaintiff seeks to depose a

corporate president, or corporate officer at the apex of the corporate hierarchy, absent a reasonable indication of the officer's personal knowledge of the case and absent exhaustion of less intrusive discovery methods." (Liberty Mutual Ins. Co. v. Superior Court (1992) 10 Cal.App.4th 1282, 1287.)

Thus,

"when a plaintiff seeks to depose a corporate president or other official at the highest level of corporate management, and that official moves for a protective order to prohibit the deposition, the trial court should first determine whether the plaintiff has shown good cause that the official has unique or superior personal knowledge of discoverable information. If not, as will presumably often be the case in the instance of a large national or international corporation, the trial court should issue the protective order and first require the plaintiff to obtain the necessary discovery through less intrusive methods." (Id. at 1289.) Less intrusive methods include interrogatories directed to high-level officials to explore the state of their knowledge and involvement in the case, deposition of lower level employees with appropriate knowledge and involvement in the subject matter of the litigation, and the organizational deposition of the corporation itself. (Ibid.)

First, Plaintiff has sufficiently established good cause and a reasonable inference that Peake and Shah have personal unique or superior personal knowledge of discoverable information to support the taking of their respective depositions. To start, on July 29, 2024, Peake signed verifications under penalty of perjury attesting that Defendant's discovery responses, some of which were case-specific and detailed responses about the Subject Light Bed, Defendant's general policies and procedures as to employee practices related to the beds, and the information conveyed by Plaintiff to Defendant's employees the day of the incident, were true of his own knowledge. (Opp., p. 6:8-10; Farzan Decl., ¶ 4, Exs. A, B.) Further, Defendant's prior Person Most Knowledgeable witness, Kai Belveal (Belveal) told Plaintiff in his deposition that the "owners," apparently referring to Peake and Shah, were the parties with personal knowledge of the decision to discontinue use of the beds. (Opp., p.7:5-10; Farzan Decl., ¶ 6, Ex. C.)

Defendant's current Person Most Knowledgeable witness, Amy Holman (Holman), testified that within two months of her hire, she reviewed Plaintiff's file with Peake, has consistently communicated with Peake about the case since the file review, and has been providing regular updates about the case to Shah. (Opp., p. 7:10-13; Farzan Decl., ¶ 7, Ex. D.) As such, both

individuals designated by Defendant as Persons Most Knowledgeable redirected Plaintiff's inquiries to Peake and Shah, and neither individual already presented and deposed could answer his questions about where the Subject Light Bed went, where it came from, or why the decision was made to discontinue use of the beds.

Furthermore, the infrared therapy services offered to Plaintiff were apparently offered under Shah's medical leadership as an M.D. and Founder and CEO of Defendant. (Opp., p. 8:14-16; Farzan Decl. ¶¶ 7, 11.) As such, Shah is seemingly the only employee, agent, manager, or officer working for and with Defendant who can answer Plaintiff's questions regarding the screening and safety protocols governing the use of the device, whether those protocols called or screening clients with prior surgeries, whether the protocols were appropriately followed the day of the incident given his knowledge of the underlying incident and the general practices of Defendant, the training and supervision of staff who operated the Subject Light Bed, and whether Defendant knew or should have known the Subject Light Bed posed a risk to Plaintiff. (Opp., p. 8:16-21.)

The cases relied on by Defendant bear little weight on the present case. These cases include *Westly v. Superior Court* (2004) 125 Cal.App.4th 907, which established the general rule that agency heads and other top government executives are not subject to deposition absent compelling reasons, *Contractors' State License Bd. v. Superior Court* (2018) 23 Cal.App.5th 125, which concluded that the head of a government agency generally is not subject to deposition, and *Liberty, supra*, 10 Cal.App.4th 1282, which held an official at the head of corporate operations at a national, large-scale insurance company who was ignorant of the pending litigation was not subject to deposition. The case at hand is markedly distinguishable. Here, Defendant is not a national or international corporation, nor is it a government agency. Instead, it is a relatively small business, whose executives appear to be directly knowledgeable of the general policies and procedures within the five storefronts operated, the underlying facts of this case, the safety, whereabouts, decision-making, and protocols related to the beds, and, to some extent, appear involved in and readily informed of the pending proceeding. As such, this Court finds that Plaintiff has met his burden of showing good cause for the depositions.

Second,
Plaintiff has established that he has exhausted less intrusive means of

discovery. Over the course of two years, Plaintiff has propounded Form Interrogatories, Special Interrogatories, Requests for Admission, and two sets of Requests for Production. (Opp., p. 4:2-4; Farzan Decl. ¶¶ 3,8.) The responses to the Form Interrogatories and Requests for Production (Set One) were personally verified by Peake. Plaintiff's request for communications within Defendant's organization related to his case was met with objection and no documentation was produced in response to his discovery requests, resulting in his filing of a motion to compel.

Plaintiff

also took depositions of two Persons Most Knowledgeable as designated by Defendant, Belveal and Holman, both of whom redirected his questions to or otherwise referenced Peake and Shah as individuals who could sufficiently answer Plaintiff's questions. Defendant's current Person Most Knowledgeable, Holman, did not start working for Defendant until two months after the incident from which Plaintiff's claim arose, gaining her knowledge from reviewing medical records and from Belveal's secondhand account, and no individual who treated Plaintiff the day of the incident is currently employed by Defendant. (Opp., p. 7:14-18; Farzan Decl., ¶ 7, Ex. D.) Based on these concerted efforts to obtain information from Defendant regarding the underlying incident and ascertaining additional employees who may have the information sought, this Court finds that Plaintiff has satisfied his burden of showing he has exhausted less intrusive means of discovery such that the apex doctrine does not apply.

Finally, Defendant has failed to show good cause for issuance of the protective order. Defendant argues that good cause exists to issue a protective order. However, the only arguments raised by Defendant are that Peake and Shah do not have personal knowledge of the subject matter of Plaintiff's case, that the apex doctrine regarding protective orders of corporate officers takes precedence over California's generally liberal discovery policies, that it would cause them undue burden because they are high-level executives, and because Plaintiff has not identified the information he intends to seek from the depositions of Peake and Shah. Defendant further requests a protective order to avoid annoyance, oppression, undue burden, embarrassment, and expense to Peake, Shah, and Defendant. (Motion, p. 4:2-4.)

As

discussed, Plaintiff has reasonably established that Peake and Shah have some level of personal knowledge related to the subject matter of the case at hand. Plaintiff has also established good cause and exhaustion of less intrusive discovery

methods, which precludes Defendant from relying solely on the apex doctrine. Further, Defendant fails to point to any fact or concern related to the purported undue burden a tailored, targeted, one hour long remote deposition would place on Peake, Shah, or Defendant. Generally, Defendant fails to establish any of the above-noted concerns would result from the depositions of Defendant's officers. Finally, Plaintiff has made clear the narrow scope of the depositions and the information sought from Peake and Shah, and there was no requirement that Plaintiff noticed the specific information sought in his notices of deposition, given that they were not directed to Defendant to produce the most knowledgeable witness, but directed at named individuals. As such, the Court finds that Defendant has failed to establish good cause for granting the requested protective orders, and the request is therefore DENIED.

Plaintiff's Sanction Request

Plaintiff

seeks sanctions against Defendant in the amount of \$10,000 for 20 hours of work on the present motion at \$500 per hour. The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order unless it finds that the one subject to the sanction acted with justification or that other circumstances make the imposition of a sanction unjust. (Code Civ. Proc., § 2025.420, subd. (h).)

Here, Defendant has engaged in meet and confer efforts, offered further written interrogatories to address the issues raised by Plaintiff, and on June 18, 2026, offered to present both Peake and Shah for deposition. (Chester Decl., ¶¶ 5-7, Exs. A, B.) Because Defendant has attempted in good faith to resolve the issue and offered to facilitate the depositions of Peake and Shah within the parameters initially set by Plaintiff, the Court declines to impose sanctions against Defendant for the bringing of this motion at this time.

CONCLUSION AND ORDER

Based on the foregoing, the Court DENIES the motion for protective order and a stay of discovery. Plaintiff's request for sanctions is DENIED.

IT IS SO ORDERED.

DATED: June 26, 2026 _____

Edward
B. Moreton, Jr.

Judge
of the Superior Court